

DESERT GROUP
GENERAL TERMS AND CONDITIONS (GOODS)

1 DEFINITIONS

Unless otherwise defined herein, capitalised words and expressions used in these Conditions shall have the meaning given to them in the Purchase Order (**PO**).

2 ORDERING/PRICE

- 2.1 The Provider agrees to sell and the Purchaser agrees to buy the Goods for the fixed price (subject to any adjustments made pursuant to this Clause) stated in the PO on the terms of the Contract.
- 2.2 Unless otherwise stated in the Specification or the PO, the Price shall be inclusive (where applicable) of all charges including, without limitation, any duties, taxes, levies, costs, expenses, disbursements or import charges, as well as all other charges associated with the packaging and transportation, shipping, carriage, insurance and delivery and installation (if applicable) of the Goods to or at the Site.
- 2.3 No variation or amendment to the Contract shall be binding on the Purchaser unless one of the Purchaser's Authorised Representatives have agreed to such variation or amendment in writing.
- 2.4 The Purchaser may vary the Specifications of the Goods by giving reasonable notice to the Provider, in which case:
- (a) if only the quantity of the Goods has changed, the Price shall be adjusted pro rata in relation to the Price stated in the PO having regard to the change in quantity of the Goods; or
 - (b) if any other part of the Specifications has changed, and subject to Clause 2.5, the Price shall be adjusted as otherwise agreed between the Parties in writing.
- 2.5 Save for the circumstances set out in Clause 2.4(a), if the Parties do not agree in writing to a Price adjustment in accordance with Clause 2.4(b) prior to the start of the delivery to the Site of the Goods the subject of the varied Specifications, the Price shall be deemed to remain as identified in the PO for all of the Goods (including the Goods required in connection with the varied Specification) and not be subject to any increase, adjustment or uplift of any kind.

3 DELIVERY OF GOODS

- 3.1 The Goods shall be delivered to the Site in accordance with the Delivery Date or Delivery Schedule (as applicable) and the Specifications. Time shall be of the essence in relation to delivery of the Goods.
- 3.2 All supplies of any Goods shall be accompanied by:
- (a) a prominently placed delivery note bearing the applicable PO number, the Provider's name and contact details, the Goods' description (exactly as detailed on the PO) and marked in accordance with all applicable regulations and legal requirements and any instructions given by the Purchaser in the PO;
 - (b) all applicable manufacturers manuals, certificates and warranties; and
 - (c) where the Goods are not installed by the Provider, instructions for their installation (if required by the Purchaser),
- and shall otherwise be properly packed and secured so they reach the Site in an undamaged state and fit for purpose.
- 3.3 The title and risk in the Goods shall pass to the Purchaser as follows:
- (a) if the Goods are installed by the Provider, title shall pass upon completion of delivery of the Goods or where delivered in batches, each batch of Goods, to

the Site and risk shall pass on completion of such installation; or

- (b) in any other case, title and risk shall pass upon completion of delivery of the Goods or where delivered in batches, each batch of Goods, to the Site,

but, in any case, without prejudice to the Purchaser's right to reject the Goods under the Contract. Delivery shall be deemed to take place on signature of the Provider's delivery note by one of the Purchaser's Authorised Representatives. Installation shall be deemed to be complete on signature of the Provider's installation note by one of the Purchaser's Authorised Representatives.

- 3.4 Signature of the Provider's delivery or installation note (as applicable) on behalf of the Purchaser, acceptance or approval in any way whatsoever at the time of delivery or installation, or payment (in full or in part) for the Goods by the Purchaser shall be without prejudice to the Purchaser's right to reject the Goods and shall not constitute acceptance of the Goods by the Purchaser.
- 3.5 The Provider shall at its own expense provide any programmes of manufacture and delivery that the Purchaser may reasonably require. The Provider shall notify the Purchaser without delay in writing if the Provider's progress falls behind or may fall behind any of these programmes. The Purchaser shall have the right to inspect and test the Goods at any time before delivery or completion of installation.
- 3.6 The Purchaser shall not be deemed to have accepted the Goods until the Inspection Period has expired, or if no such period is specified until the Purchaser has had a reasonable time and opportunity, to inspect, test and commission the Goods.
- 3.7 Any Goods may be rejected at the sole and absolute discretion of the Purchaser if:
- (a) the Goods are discovered to be damaged; or
 - (b) the Goods are not in accordance with the Contract,
- such Goods shall be removed by the Provider at the Provider's sole cost and expense.
- 3.8 If the Purchaser rejects any part of the Goods accordance with Clause 3.7 it may, without prejudice to any other remedy and at the Purchaser's sole and absolute discretion:
- (a) require the Provider to repair the Goods (to the sole and exclusive satisfaction of the Purchaser) or supply replacement Goods in accordance with the Contract within five days; or
 - (b) treat the Contract as repudiated by the Provider's breach and demand full repayment of any part of the Price that has been paid to or for the benefit of the Provider without any deduction, retention or set-off whatsoever.
- 3.9 The Purchaser shall not be responsible for any damage or loss to the Goods suffered by the Provider failing to collect the Goods after the Purchaser has given the Provider a notice rejecting the Goods in accordance with Clause 3.7.
- 3.10 Delivery and installation is made entirely at the Provider's risk. The Provider shall indemnify, hold harmless and defend the Purchaser and its officers, employees, contractors, consultants, agents and representatives against any loss, cost, expense, liability, claim, damage or proceeding incurred or caused by the Provider in relation to or in connection with delivery or installation.
- 3.11 If the Goods are to be delivered or provided in batches, the Contract will be treated as a single contract and not severable.

4 LATE DELIVERY AND INSTALLATION

- 4.1 If the Goods or any part thereof are not delivered or installed in accordance with the Delivery Date or Delivery Schedule (as applicable) ("**Late Delivery**"), then the Purchaser may at its sole and absolute discretion take any one or more of the following actions:

- (a) by written notice cancel any undelivered balance of the Goods;
- (b) treat the Contract as terminated by the Provider's breach and require full repayment of any part of the Price that has been paid to or for the benefit of the Provider; or
- (c) at the Provider's expense, demand that any Goods already delivered to the Site be removed;
- (d) source alternative goods from a third party and any additional costs reasonably so incurred, whether as a result of a difference in price for those alternative goods or in relation to such sourcing, shall be at the Provider's sole expense. This shall not affect any other rights the Purchaser may have, including without limitation, those under Clause 4.2.
- (e) in the case of services provided in relation to the Goods (including, without limitation, installation services), the Purchaser may have the services performed by alternative means and any additional costs reasonably so incurred shall be at the Provider's expense and the Purchaser shall be entitled to claim such costs against any performance bond provided by the Provider to the Purchaser (if any). This shall not affect any other rights that the Purchaser may have including, without limitation, those under Clause 4.2 below.

4.2 Without prejudice to any other remedy (at law or otherwise) and in addition, without limitation, to any amount(s) payable under Clause 4.1, if Late Delivery occurs, the Provider shall pay the Purchaser on demand the Late Delivery Damages.

5 PAYMENT

- 5.1 Unless otherwise set out in the PO, the Provider shall submit an invoice in respect of the Goods to the Purchaser within 14 days after the later of the completion of delivery or installation of all Goods. The invoice must:
 - (a) bear the applicable PO number, the Provider's name and contact details, and a description of the Goods' (exactly as detailed on the PO);
 - (b) be marked in accordance with all applicable regulations and legal requirements; and
 - (c) be accompanied by a copy of the Provider's delivery note and/or installation note (as applicable) which has been signed by one of the Purchaser's Authorised Representatives pursuant to Clauses 3.2 and 3.4,
- 5.2 Except if the amount of an invoice is disputed by the Purchaser, payment shall be made by the Purchaser within the Payment Period. Where an invoice is disputed by the Purchaser, the Purchaser shall pay only the undisputed amount of such invoice within the Payment Period and any dispute shall be resolved in accordance with Clause 14. For the avoidance of doubt, payment by the Purchaser shall not prejudice the Purchaser's rights under Clauses 3.5 or 4.
- 5.3 The Purchaser shall be entitled to set off any sums owed to the Provider against any sums owed by the Provider to the Purchaser.

6 PROVIDER'S WARRANTIES AND OBLIGATIONS

- 6.1 The Provider undertakes and warrants to the Purchaser that, unless specifically otherwise in the Specification or the PO:
 - (a) the Goods shall:
 - (i) comply with the Contract;
 - (ii) be fit for the purpose for which they are supplied;
 - (iii) conform with any sample, specification, trade literature, brochure or other document produced by the Provider;
 - (iv) be free from defects in design, material and workmanship; and
 - (v) comply with all applicable laws, regulations, resolutions and decrees; and

- (b) any services provided in relation to or connection with the Goods (including, without limitation, installation services) shall be carried out with reasonable skill and care.

6.2 The acceptance by the Purchaser of all or any part of the Goods shall be without prejudice to any rights it may have against the Provider for breach of Clause 6.1

6.3 The Provider shall:

- (a) promptly repair or replace, at its own expense, any defect in or defective Goods that the Purchaser discovers under proper usage during the Warranty Period from the Delivery Date. Such defects may arise from the Provider's faulty design, erroneous instructions as to use or inadequate or faulty materials or poor workmanship or any other breach of the Provider's obligations whether under the Contract or at law;
- (b) maintain and service the Goods during the Maintenance Period (if applicable) at its own expense; and
- (c) ensure that compatible spares are available to facilitate repairs (where applicable) for the Spares Warranty Period from the Delivery Date.

7 COMPLIANCE WITH LAW AND INSURANCE

- 7.1 The Provider shall ensure that at all times it has and maintains any and all licenses, authorisations, consents and permits required to carry out and perform its obligations under the Contract.
- 7.2 During the term of the Contract the Provider shall obtain and maintain in force, with a reputable insurance company licensed to provide insurance in the country where the Site is located, any insurances stated in the Specification or which the Purchaser is required by law to maintain. Satisfactory evidence of such insurances shall be shown by the Provider to the Purchaser upon request.
- 7.3 If the Contract involves any works or services which the Provider performs on the Site or at any other location owned, inhabited or controlled by the Purchaser, the Provider shall ensure that it and its employees, its sub-contractors and their employees and any other person associated with the Provider:
 - (a) adheres in every respect to the obligations imposed on the Provider by current applicable health, safety and environment legislation; and
 - (b) complies with any regulations the Purchaser may give notice of in writing to the Provider from time to time.
- 7.4 At all times, the Provider shall observe all legal requirements of the country in which the Site is located or any other jurisdiction in which it operates and relevant international agreements in relation to health, safety and environment and employment legislation.

8 INDEMNITY

- 8.1 The Provider shall indemnify, hold harmless and defend the Purchaser and its officers, employees, contractors, consultants, agents or representatives against any and all claims, liabilities, losses and damages suffered and costs and expenses (including, without limitation, legal and professional expenses on a full indemnity basis) incurred by the Purchaser arising directly or indirectly as a result of:
 - (a) any damage to any property, or injury to, or death of, any person, or any financial or economic loss (including, without limitation, loss of profits) caused by any negligence, act, omission or wilful misconduct of the Provider or its officers, employees, contractors, consultants, agents or representatives (whether or not such persons are acting in the course of their employment) arising out of, in relation to, or in connection with, the Goods or the Provider's obligations under the Contract (including without limitation, and where applicable, the delivery, installation and, where undertaken by the Provider, maintenance of the Goods);

- (b) any breach of any warranty given by the Provider in relation to the Goods (whether express or implied); and
- (c) any breach by the Provider of the Contract.

9 CONFIDENTIALITY

- 9.1 The Provider shall, and shall ensure that its officers, employees, contractors, consultants, agents and representatives shall keep confidential and not disclose to any person any information:
 - (a) arising out of or deriving from the negotiations leading up to the Contract and the provisions or subject matter of the Contract; and
 - (b) in relation to or in connection with the Purchaser's business, customers, financial or other affairs, except as required by law, a court or tribunal of competent jurisdiction or to the extent such information has become publicly available or generally known to the public at the time of the disclosure other than as a result of a breach of the Contract or any duty of confidentiality.
- 9.2 The Provider shall not advertise or publicly announce that it is supplying goods or undertaking work for the Purchaser without the Purchaser's prior written consent, such consent to be provided at the absolute discretion of the Purchaser.

10 TERMINATION

- 10.1 Without prejudice to the Purchaser's rights under these Conditions, the Purchaser shall be entitled to terminate the Contract in respect of all or any part of the Goods at any time, by giving 10 days written notice to the Provider.
- 10.2 The Purchaser shall be entitled to terminate the Contract immediately by giving written notice to the Purchaser, at any time, if:
 - (a) the Purchaser is in breach of a provision of the Contract, and in the case of a breach capable of being remedied, such breach has not been remedied within five days of receipt of written notice by the Provider from the Purchaser specifying the breach and requiring it to be remedied;
 - (b) there is any significant adverse change in the business, operations, assets, position (financial, trading or otherwise), or any event or circumstance that may reasonably be expected to result in such a significant adverse change;
 - (c) the Provider becomes insolvent or bankrupt, appoints an administrator, receiver or similar officer or enters into administration or other similar procedure in any jurisdiction; or
 - (d) the Provider ceases, or threatens to cease, to carry on its business in the ordinary and usual course.
- 10.3 If the Provider is terminated prior to acceptance of all or any part of the Goods, the Purchaser shall only be liable to pay the Price on a pro rata basis in relation to those Goods that it has accepted. Termination of the Contract, however arising, shall not affect any of the Parties' rights and remedies that have accrued on or before termination.
- 10.4 The following Clauses shall survive termination of the Contract: Clauses 8 (Indemnity), 9 (Confidentiality) and 14 (Law and Jurisdiction)

11 ASSIGNMENT

- 11.1 The Purchaser may at any time assign or transfer any or all of its rights or obligations under the Contract.

- 11.2 The Provider shall not assign or transfer the benefit or the burden of the Contract and shall not sub-contract the whole or any part of its obligations under the Contract without the Purchaser's prior written consent.

12 GENERAL

- 12.1 Any notice required to be given by either Party to the other under the Contract shall be in the English language and in writing addressed to the other Party at the address stated in the PO or, if no address is stated in the PO, to its principal place of business.
- 12.2 If any provision or part of the Contract is held to be invalid, illegal or unenforceable for any reason by any court of competent jurisdiction, such provision or part shall be severed and the remainder of the provisions and parts shall continue in full force and effect as if the Contract had been executed with the invalid, illegal or unenforceable provision eliminated.
- 12.3 No waiver by either Party of any breach of the Contract shall be considered to be a waiver of any subsequent breach of the same or any other provision.
- 12.4 A person who is not a party to the Contract shall not have any rights under or in connection with it.
- 12.5 Nothing in this Contract, and no action taken under this Contract, shall create a partnership, establish an employment relationship or relationship of principal and agent between the Purchaser and the Provider or otherwise authorise either Party to bind the other Party for any purpose.

13 LIMITATION OF LIABILITY

- 13.1 The Purchaser's maximum liability to the Provider, under or in connection with the Contract, shall not exceed the Price, as may be varied in accordance with Clause 1 (Ordering/Price).

14 GOVERNING LAW AND DISPUTES

- 14.1 The Contract shall be governed by and construed in accordance with the Governing Law.
- 14.2 All disputes arising out of or in connection with this Contract (a **Dispute**) shall, to the extent possible, be settled amicably by negotiation between the Purchaser and the Provider within 28 days from the date of written notice by either the Purchaser or the Provider of the existence of such a Dispute.
- 14.3 Any Dispute that has not been resolved within 28 days of a notice given in accordance with Clause 14.2 and which has a value of AED 500,000 or less shall be submitted to, and finally resolved by, the Small Claims Tribunal located in the Dubai International Financial Centre, Dubai.
- 14.4 Any Dispute that has not been resolved within 28 days of a notice given in accordance with Clause 14.2 and which: (i) has a value of greater than AED 500,000; or (ii) has a value of AED 500,000 or less but which the Small Claims Tribunal of the Dubai International Financial Centre declines to resolve, shall be finally resolved by shall be settled by arbitration in accordance with the provisions set forth under the DIAC Arbitration Rules (the **Rules**), by one arbitrator appointed in compliance with the Rules. The seat, or legal place, of arbitration shall be the Dubai International Financial Centre in the United Arab Emirates. The language to be used in the arbitration shall be English.

15 ENTIRE AGREEMENT

- 15.1 The Contract sets out the entire agreement between the Parties to the exclusion of any other terms and conditions whether express or implied, including, without limitation, the Provider's terms and conditions of sale, business, engagement or other such terms and conditions, notwithstanding any reference to them in any document forming part of the Contract.